

contract for a purchase in favour of them and their heirs, and one of them dies, the Court, if they paid equal proportions, will specifically perform the agreement, by ordering a conveyance, not to the heir of the deceased person and the survivor as tenants in common, but to the survivor alone (*d*). But even where equal contributors take a conveyance in joint-tenancy, collateral circumstances may induce a Court of Equity to construe it a tenancy in common (*e*).

Mortgage. — Thus where two tenants in common, of a mortgage term, purchased the equity of redemption to them and their heirs, it was held that the nature of the inheritance should follow that of the term (*f*); for if two persons join in lending money upon mortgage, equity says it could not have been the intention that the interest in that should survive, but though they took a joint security, each meant to lend his own, and take back his own (*g*).

Trading. — And in all cases of * a joint undertaking [*165] or partnership, by way of trade, or upon the hazard of profit and loss, the *jus accrescendi* is excluded, and the survivors are trustees, in due proportions, for the representatives of those who are dead (*a*).

Subsequent improvement by one. — And where the purchasers pay equally, and take a joint estate, and one afterwards *improves* the property at his own cost, he has a lien upon the land *pro tanto* for the money he has expended (*b*).

Unequal contribution. — Should the contribution of the

33; *Aveling v. Knipe*, 19 Ves. 444, per Sir W. Grant; *Lake v. Gibson*, 1 Eq. Ca. Ab. 291, per Sir Jos. Jekyll; *Anon. Carth.* 15; *Bone v. Pollard*, 24 Beav. 288; and see *Thicknesse v. Vernon*, 2 Freem. 84.

(*d*) *Aveling v. Knipe*, 19 Ves. 441.

(*e*) *Robinson v. Preston*, 4 K. & J. 505.

(*f*) *Edwards v. Fashion*, Pr. Ch. 332; and see *Aveling v. Knipe*, 19 Ves. 444.

(*g*) *Morley v. Bird*, 3 Ves. 631, per Lord Alvanley; *Rigden v. Vallier*, 3 Atk. 734, per Lord Hardwicke; *Anon. case Carth.* 16; *Partridge v. Pawlet*,

1 Atk. 467; *Petty v. Styward*, 1 Ch. Rep. 57; *Vickers v. Cowell*, 1 Beav. 529; and see *Robinson v. Preston*, 4 K. & J. 511.

(*a*) *Lake v. Gibson*, Eq. Ca. Ab. 290; S. C. (by name of *Lake v. Craddock*) affirmed 3 P. W. 158; *Jeffereys v. Small*, 1 Vern. 217; *Elliot v. Brown*, cited *Jackson v. Jackson*, 9 Ves. 597; *Lyster v. Dolland*, 1 Ves. jun. 434, 435, per Lord Thurlow; and see *York v. Eaton*, 2 Freem. 23; *Bone v. Pollard*, 24 Beav. 288.

(*b*) *Lake v. Gibson*, 1 Eq. Ca. Ab. 291, per Sir J. Jekyll.